

**CAPITAL ONE, NA, SUCCESSOR BY MERGER
TO DISCOVER BANK, v SKAAR**

26CF15614

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This matter involves a claim for credit card debt brought by Capitol One, N.A. ("Plaintiff") against RJ Skaar ("Defendant.")

Now before the Court is a motion for judgment on the pleadings.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the motion is **DENIED without prejudice to refile.**

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

WEST COAST HOLDINGS GROUP, LLC, v SONNACK, et al

25CV47906

DEFENDANT'S DEMURRER

This is an action arising out of the alleged wrongful foreclosure of real property brought by West Coast Holdings Group, LLC ("Plaintiff") against a variety of defendants, including Eileen C. Sonnack, Trustee of the Eileen C. Sonnack Trust ("Sonnack.")

Now before the Court is Sonnack's demurrer to Plaintiff's Complaint.

Defendant's Request for Judicial Notice is **GRANTED**.

The Complaint fails to comply with California Rule of Court 2.112 and is therefore subject to demurrer for uncertainty (Code Civil Procedure § 430.10(f); *Grappo v. McMills* (2017) 11 Cal.App.5th 996, 1014 ["failure to comply with rule 2.112 presumably renders a complaint subject to a motion to strike (§ 436), or a special demurrer for uncertainty"].) The Complaint also fails to comply with Code Civ. Proc. Section 425.10(a) which requires that each legal theory be separately stated and contain a "statement of the facts constituting the cause of action, in ordinary and concise language."

The demurrer is **SUSTAINED, with 20 days leave to amend**, on the grounds that it fails to comply with California Rules of Court 2.112 and is therefore fatally uncertain.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant Sonnack to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.